

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TZ SSE BUYER, LLC, *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent*.

DOCKET NO. 24-09

Served: November 4, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

FIRST AMENDED SCHEDULING ORDER

In the October 16, 2024 order granting Complainant leave to file a second amended complaint, I directed the parties to file a joint status report proposing a revised discovery schedule in light of the delays caused by the bankruptcy court's approval of the sale of former complainants Impact Products, LLC and Safety Zone, LLC to TZ SSE Buyer, LLC. The parties filed their joint status report on October 31, 2024, and while they agree to a five-month extension to the schedule, they disagree as to the dates for expert discovery. According to the parties' representations, Complainant has already noted its expert in accordance with the existing discovery schedule, but Respondent argues that the Complainant should not be allowed an extension to produce its expert report, the deadline for which passed on "September 13, 2024" two months after the approval of the sale on July 10, 2024. Joint Status Report, p. 6. Respondent might be looking at the wrong schedule – Complainant's initial expert report was due August 20, 2024, one month after the sale. See June 24, 2024 Scheduling Order.

Respondent argues that the bankruptcy "should not be an excuse for resuscitating a long moribund deadline." Id. at 5. I have already stated in the order granting leave to file a second amended complaint that the delay following the bankruptcy court's approval of the sale to TZ SSE Buyer, after which Complainant filed a motion for leave to amend and to extend the schedule on September 27, 2024, was not unreasonable. I do not find that they have "cavalierly disregarded" the scheduling order under these circumstances. Respondent's arguments regarding prejudice are vague and unsupported ("substantial" delay and "significant" costs). Joint Status Report, p. 6. In any event, Respondent's professed concern about delay from allowing expert reports, when it otherwise agrees to an overall five-month extension to the discovery schedule, seems more like a strategic attempt to limit Complainant's case than an actual concern about timeliness. I find Complainant's requested extension to allow service of expert reports reasonable and consistent with the need to create a complete record for decision.

I will, however, compress the schedule proposed by the parties since they have, without explanation, expanded it by several weeks between the dates for service of supplemental requests for written discovery and the close of discovery. The schedule below aligns more closely with

the original schedule. As I said in the first scheduling order, I encourage the parties to start scheduling depositions as soon as possible. I also encourage them to send me any subpoenas for issuance as soon as possible – requests to extend deadlines because of foreseeable scheduling conflicts will not be viewed favorably. The parties are hereby **ORDERED** to follow this schedule:

Supplemental Initial Disclosures Due	November 18, 2024
Respondent to identify rebuttal expert witness, if any	November 19, 2024
Respondent to serve responses to Complainant's initial written discovery requests	December 3, 2024
Complainant to serve expert report	December 6, 2024
Respondent to serve rebuttal reports	January 13, 2025
Last day to serve supplemental written discovery requests	January 17, 2025
Discovery closed	March 17, 2025
Complainant's Opening Brief, Proposed Findings of Fact, and Appendix	April 17, 2025
Respondent's Response Brief, Proposed Findings of Fact, and Appendix	May 19, 2025
Complainant's Reply Brief and Responses to Proposed Findings of Fact	June 2, 2025

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Alex M. Chintella
Administrative Law Judge